

TENTATIVE RULINGS

Varun Patibanda, et al.
v.
Daniel Patrick Foster, et al.
24CV002782

[Plaintiff's Motion to Compel for Further Responses to Request for Production](#)

[Defendant 7-Eleven, Inc.'s Motion for Protective Order](#)

Hearing Date: August 12, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Plaintiff's Motion to Compel Further Responses to Request for Production

The motion filed by Plaintiff Varun Patibanda ("Plaintiff") to compel Defendant 7-Eleven, Inc. ("Defendant") to further respond to Plaintiff's Request for Production of Documents and Tangible Things, Set One ("RPD") is **GRANTED IN PART AND DENIED IN PART**. Plaintiff's request for monetary sanctions is **GRANTED**, but not in the full amount Plaintiff requested.

Legal Standard.

If a party responding to a request for production fails to permit inspection, copying, testing, or sampling as specified in that party's statement of compliance, the requesting party may file a motion for an order to enforce compliance. [Code Civ. Proc. § 2031.320, subd. (a).] A motion to compel further responses to a request for production must include specific facts demonstrating "good cause" to justify the discovery sought by the demand. [Code Civ. Proc. § 2031.310, subd. (b)(1).] If the moving party shows good cause for producing documents, the burden shifts to the objecting party to justify the objections. [*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.]

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully files or opposes a motion to compel further responses to a demand for inspection or production of documents, or a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make it unjust to impose sanctions. [Code Civ. Proc. §§ 2031.310, subd. (h), and 2031.320, subd. (b).]

Discussion.

When respondents serve untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion in ruling. [*Sinaiko Healthcare Consulting, Inc. v. Klugman* (2007) 148 Cal.App.4th 390, 409; *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256.] In some cases, it may be an abuse of discretion for a court to treat a motion as one to compel further responses without requiring a separate motion. [*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.] Here, the Court, in its discretion, will rule on the sufficiency of Defendant's supplemental response to Plaintiff's RPDs.

A. Defendant's Preliminary Statement, General Objections, and Specific Objections.

Defendant is ordered to provide further supplemental RPD responses that do not include a Preliminary Statement or General Objections. General objections to all requests are improper and may result in sanctions in a motion to compel. [Code Civ. Proc. § 2031.210, subd. (a)(3); *Korea Data Systems Co. Ltd. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516; see *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1129-1130.] Defendant's "Preliminary Statements" also create doubt as to whether Defendant has provided complete responses.

As to each objection stated in the particular RPD, Defendant did not support them. All undefended objections are **OVERRULED**. [See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 97 (citing *Coy*, 58 Cal.2d at 220-221).]

B. Defendant's Supplemental Responses.

Plaintiff's motion to compel Defendant to provide additional supplemental responses to the following RPDs is **GRANTED IN PART AND DENIED IN PART**:

Regarding **RPDs 2, 11-12, 50-67, 80-82, 109, 111, 113, and 124-127**, the motion is **GRANTED** because the current responses do not fully comply with Code of Civil Procedure section 2031.230. Defendant claims it did not find any responsive documents after a diligent search and reasonable inquiry, claiming such documents are not in its possession, custody, or control. Nonetheless, the statute requires Defendant to identify any person or organization believed to possess, have custody of, or have control over the requested items, including their names and addresses. [Code Civ. Proc. § 2031.230.]

For **RPDs 9-10, 26-28, 30-34, 41-49, 68-72, 77-79, 83-86, 100-105, 108, 110, 112, and 128-135**, the motion is **GRANTED** because the supplemental responses do not fully comply with Code of Civil Procedure section 2031.240. If the response states that Defendant has previously produced the document, then Defendant must specify that document and its location, such as the Bates range, in the production. If the supplemental response indicates that Defendant will produce the document with or without a protective order, then Defendant must identify those documents and produce them within 30 days of the Court's order.

As to **RPDs 29 and 36-37**, the motion is **DENIED**. Defendant's supplemental response complies with Code of Civil Procedure section 2031.220 because it identified the responsive document by name or type, and the Bates range.

The parties are ordered to meet and confer regarding **RPDs 74-75** to clarify what documents Plaintiff is seeking. As phrased, those RPDs are vague.

C. Monetary Sanctions.

Plaintiff's request for monetary sanctions totaling \$7,500 is **GRANTED IN PART**. Defendant's opposition was unsuccessful. Further, Defendant and defense counsel did not act with substantial justification, especially when Defendant chose to serve supplemental responses after a motion was filed. No other circumstances exist that would make the imposition of monetary sanctions unjust. Therefore, the Court will award monetary sanctions, but not in the full amount requested. Instead, the Court awards Plaintiff \$4,500 in reasonable attorney's fees for Sargis Atanous (9 hours at \$500/hour). The Court finds Mr. Atanous' \$700 rate excessive for this type of motion in Monterey County. In light of the foregoing, Plaintiff's request for monetary sanctions against Defendant and/or defense counsel, jointly and severally, is **GRANTED IN PART** for \$4,500.

Conclusion.

Plaintiff's motion to compel is **GRANTED IN PART AND DENIED IN PART**. Defendant shall serve verified, objection-free, Code-compliant further responses as detailed above within 30 days of the Notice of Entry of the signed order. Defendant shall also produce all documents responsive to the RPDs within that same timeframe, including those subject to a protective order.

Plaintiff's request for monetary sanctions is **GRANTED IN PART**. Defendant and its counsel, jointly and severally, shall pay a total of \$4,500 in reasonable sanctions, payable to The Dunnion Law Firm within 30 days of the Notice of Entry of the signed Order.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

Defendant 7-Eleven, Inc.'s Motion for Protective Order

Defendant 7-Eleven, Inc. (“Defendant” or “7-Eleven”) brings this motion for a protective order requesting the court to issue an order that allows it to designate four categories of documents as confidential: “(1) the compiled prior-incident Reports assembled at counsel's direction at a cost of over \$35,000, documenting internal investigative narratives, asset-protection protocols, and organizational structure; (2) 7-Eleven's corporate operations guidelines; (3) bollard and new-store design specifications developed by a retained expert consultant; and (4) internal correspondence containing contact information of non-party employees, franchisees, and third parties.” [Reply at 4.] Defendant’s proposed Protective Order, modeled after the one used in Los Angeles County, includes a process for challenging the designation. [Acosta Decl. at ¶ 10 and Exh. 4 at ¶¶ 6, 9.]

Defendant argues that good cause exists because the information requested involves proprietary commercial data, includes personal information of non-parties, internal communications, and design specifications. In response, Plaintiff Varun Patibanda (“Plaintiff”) claims that Defendant has not demonstrated good cause for a protective order.

Code of Civil Procedure section 2025.420, subdivision (b), provides that “for good cause shown,” the court may issue a protective order “to protect any party or deponent from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The burden is on the moving party to establish “good cause” for the requested relief. [See *Emerson Electric Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi v. Deutsche Bank Nat. Trust Co.* (2014) 223 Cal.App.4th 261, 318.] Rulings on motions for protective orders will not be disturbed absent an abuse of discretion. [*Nativi*, 223 Cal.App.4th at 316-317.]

Here, Defendant has shown good cause for the issuance of a protective order. Defendant's counsel, Paloma Acosta, attests that the documents responsive to Plaintiff’s requests include the “corporate operations manual,” which contains confidential business details [Acosta Decl. at ¶ 4], “bollard specifications/designs' derived from work done by a retained expert [*id.* at ¶ 5], and “internal correspondence” with personal contact information [*id.* at ¶ 6]. Consequently, the motion is **GRANTED**.

The requests for monetary sanctions by each party are **DENIED**. Defendant was justified in their actions, supported by the good-cause shown above. Similarly, Plaintiff had substantial justification in opposing Defendant’s motion. It is understandable that Plaintiff declined Defendant’s proposed protective order, since changing the designation of confidential documents requires Court approval and can involve lengthy waits on a busy court schedule. Additionally, instead of requiring Defendant to prove the necessity of protecting specific discovery items, the protective order shifts the burden to Plaintiff to challenge and rebut Defendant’s “confidential” designations.

In sum, the motion is **GRANTED**, and the Protective Order attached as Exhibit 4 to the Acosta Declaration is operative for this case. Each party’s request for monetary sanctions is **DENIED**. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

